

STATE OF NEW YORK

6633--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to retirement benefits for general members in the uniformed correction force of the New York city department of correction

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision d of section 504 of the retirement and social
2 security law, as amended by chapter 18 of the laws of 2012, is amended
3 to read as follows:

4 d. The early service retirement benefit for general members in the
5 uniformed correction force of the New York city department of
6 correction, who are not entitled to an early service retirement benefit
7 pursuant to subdivision c of section five hundred four-a of this article
8 or subdivision c of section five hundred four-b of this article or
9 subdivision c of section five hundred four-d of this article, or for
10 general members in the uniformed personnel in institutions under the
11 jurisdiction of the department of corrections and community supervision,
12 as defined in subdivision i of section eighty-nine of this chapter,
13 shall be a pension equal to one-fiftieth of final average salary times
14 years of credited service at the completion of twenty-five years of
15 service, [~~but not in excess of fifty percent of final average salary~~]
16 plus one-sixtieth of final average salary times years of credited
17 service in excess of twenty-five, provided, however, that the provisions
18 of this section shall not apply to a New York city uniformed
19 correction/sanitation revised plan member.

20 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD04085-04-6

SUMMARY: This proposed legislation would increase the service retirement benefit for credited service exceeding 25 years for uniformed employees of the New York City Department of Correction who joined NYCERS prior to December 19, 1990 (Tier 3 CO-25 Plan Members).

EXPECTED INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
by Fiscal Year for the first 25 years (\$ in Thousands)

Year	NYCERS
2027	4,993
2028	10
2029	5
2030	3
2031	1
2032	1
2033	0
2034	0
2035	0
2036	0
2037	0
2038	0
2039	0
2040	0
2041	0
2042	0
2043	0
2044	0
2045	0
2046	0
2047	0
2048	0
2049	0
2050	0
2051	0

The entire increase in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
as of June 30, 2025 (\$ in Thousands)

Present Value (PV)	NYCERS
(1) PV of Employer Contributions:	4,528
(2) PV of Employee Contributions:	0
Total PV of Benefits (1) + (2):	4,528

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL were amortized over the expected remaining working lifetime of those impacted using level dollar payments.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY

	NYCERS
Increase (Decrease) in UAL:	4,498 K

Number of Payments:	1
Amortization Payment:	4,978 K

CENSUS DATA: The estimates presented herein are based on preliminary census data collected as of June 30, 2025. The census data for the impacted population is summarized below.

Active Members	NYCERS
- Number Count:	17
- Average Age:	62.9
- Average Service:	35.9
- Average Salary:	175,800

IMPACT ON MEMBER BENEFITS: Currently, upon reaching 25 or more years of credited service, CO-25 Plan Members are entitled to a service retirement pension benefit equal to 50% of Final Average Salary (FAS).

Under the proposed legislation, CO-25 Plan Members who retire for service under Retirement and Social Security Law section 504(d) after the effective date of the proposed legislation with 25 or more years of credited service would be equal to 50% of FAS for the first 25 years of credited service, plus 1/60th of FAS for each additional year of credited service, or fraction thereof, exceeding 25 years.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2026-38 dated March 13, 2026 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2026 Legislative Session.